

The U.P. Subordinate Forest (Rangers, Deputy Rangers and Foresters) Service Rules, 1951

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State of Uttar Pradesh - Act

The U.P. Subordinate Forest (Rangers, Deputy Rangers and Foresters) Service Rules, 1951

UTTAR PRADESH

India

The U.P. Subordinate Forest (Rangers, Deputy Rangers and Foresters) Service Rules, 1951

Rule THE-U-P-SUBORDINATE-FOREST-RANGERS-DEPUTY-RANGERS-AND-FORESTERS-SERVICE-RULES-1951
of 1951

Published on 17 April 1951

Commenced on 17 April 1951

[This is the version of this document from 17 April 1951.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Subordinate Forest (Rangers, Deputy Rangers and Foresters) Service Rules, 1951

Published vide Notification No. 434/14-194-26, dated 17th April, 1951

In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, and in supersession of all existing rules and orders in this regard the Governor of Uttar Pradesh makes the following rules regulating recruitment to and conditions of service of persons appointed to the posts of Rangers, Deputy Rangers and Foresters in the Subordinate Forest Service.

Part I ? General

1.

Short title.

- These rules may be called the U.P. Subordinate Forest (Rangers, Deputy Rangers and Foresters) Service Rules, 1951, and shall take effect from the date of the notification.

2.

Status.

- Rangers, Deputy Ranger and Foresters and members of the Subordinate Forest Service.

3.

Definitions.

- In these rules unless there is anything repugnant in the subject or context,-

(a)

"Constitution" means the Constitution of India;

(b)

"College" means the Indian Forest Rangers College, Dehra Dun;

(c)

"Commission" means the Uttar Pradesh Public Service Commission;

(d)

"Governor" means the Governor of Uttar Pradesh;

(e)

"Government" means the Government of Uttar Pradesh;

(f)

"Member of the Service" means a servant of the State of Uttar Pradesh appointed in a substantive capacity under the provisions of these rules or of orders in force previous to the introduction of these rules, to a post in the cadre of the service;

(g)

"Service" means the Subordinate Forest (Rangers, Deputy Rangers and Foresters) Service.

Part II ? Cadre

4.

Cadre.

- The sanctioned strength of the cadre of the service is as follows :

Forest Rangers

..

..

110

Deputy Rangers

..

..

107

Foresters

..

..

16

Provided that the Governor may-

(i)

leave unfilled or hold in abeyance any vacant post or posts without thereby entitling any members of the service to compensation; and

(ii)

create additional, permanent or temporary posts from time to time as may be found necessary :

Provided further that subordinate authorities may also create temporary posts to the extent of powers delegated to them in this behalf.

Part III ? Recruitment

5.

Source of Recruitment.

- Recruitment to the service shall be made from the following sources :

(a)

Forest Rangers.-

(1)

By promotion of Deputy Rangers holding High School Examination Certificate (or equivalent qualification) and considered fit to hold charge of an important range. Not more than fifty per cent of the total number of posts of Forest Rangers may be filled by promotion.

(2)

By direct appointment of candidates who have been selected through the Commission in the manner prescribed in Appendix A to these rules for undergoing a course of instruction in the college and who have obtained the higher standard certificate after two years' training therein.

(b)

Deputy Rangers.-

(1)

By promotion of Foresters holding High School Examination Certificate (or equivalent qualification) and considered fit to hold charge of small range.

Note. - Recruitment to the post of Deputy Rangers will be made entirely by promotion except to the extent to which candidates may be appointed under clause (2) of this rule.

(2)

By direct appointment from amongst candidates who hold a lower standard certificate of the college.

(c)

Foresters.-

(1)

By promotion of-

(i)

forest guards and other subordinates of long and meritorious service, and holding the Hindustani Middle Examination certificates;

(ii)

younger forest guards and other subordinates holding High School Examination Certificate (or equivalent qualification).

Note. - Not more than fifty per cent of the total number of posts of Foresters may be filled by promotion.

(2)

By direct appointment of candidates who hold the High School Examination Certificate (or equivalent qualification).

Note. - Procedure regarding training of subordinates at the State Forest Training Class given in the Forest Manual.

Part IV ? Qualification

6.

Nationality, Domicile and Residence.

- The nationality, domicile and residence qualification shall be in accordance with the rules in force at the time of recruitment (A copy of the rules in force at time of promulgation of these rules will be found in Appendix B.)

7.

Age.

(1)

No person shall be recruited to the service under the provisions of Rule 5 (a) (2) unless he has attained the age of 19 years and has not attained the age of 21 years on August 31 of the year in which selection is made for admission to the Ranger's Course at the college.

(2)

The age of a candidate recruited to the service under Rule 5 (b) (2) shall be not less than 21 and not more than 23 years and under Rule 5 (c) (2) not more than 23 years on January 1 of the year in which the recruitment is made :

Provided that exemption from maximum age limit may be granted by the Government in special cases where it is considered necessary in public interest or in the interest of fair dealing.

(3)

No person shall be appointed to the service under the provisions of Rule 5 (b) (1) if he exceeds the age of 50 years and under Rule 5 (c) (1) if he exceeds the age of 40 years on January 1 of the year in which recruitment is made.

8.

Academic qualifications.

- No person shall be appointed to the service under the provisions of Rules 5 (a) (2) and 5 (b) (2) unless he has passed the Intermediate Examination held by the Board of High School and Intermediate Education, Uttar Pradesh, or an examination recognized by Government as equivalent hereto, with one or more of the following subjects :

Mathematics, Physics, Chemistry, Botany and Zoology.

Part V ? Procedure

9.

Number to be recruited from each source.

- The number of vacancies to be filled from each source mentioned in Rule 5 shall be determined by the Chief Conservator of Forests in the case of Rangers and by the Conservator of Forests in the case of Deputy Rangers and Foresters.

10.

Appointments by promotion under the provisions of Rules 5 (a) (1), 5 (b) (1), 5 (c) (1) (i) and (ii) shall be by seniority subject to the rejection of the unfit.

Part VI ? Appointment, Probation, Confirmation

11.

Appointment to the posts of Forest Rangers shall be made.

(1)

(a)

in the case of candidates recruited under Rule 5 (a) (1) in order in which such candidates are placed by the Commission;

(b)

in the case of candidates recruited under Rule 5 (a) (2) according to the aggregate of marks obtained at the second year examination at the college.

(2)

Appointment to the posts of Deputy Rangers and Foresters under Rules (5) (b) (1) and 5 (c) (1) (i) and (ii) shall be made in the order of preference determined at the time of selection.

12.

Appointing authority.

(1)

The Conservator of Forests of Circle in which the vacancy occurs shall be the appointing authority in the case of Deputy Rangers and Foresters and the Chief Conservator of Forests shall be the appointing authority in the case of Rangers.

(2)

Appointment shall be made to posts in the service on the occurrence of substantive vacancies by taking candidates alternately from the list of those who have been promoted and the list of those directly recruited so far as this may be possible. Candidates shall be taken in the order in which they stand in the list and first candidate shall be the top-most candidate on the list of those selected by promotion.

13.

Representation of Scheduled Castes, etc.

- Consistently with the maintenance of efficiency of administration-

(i)

the interest of the backward classes shall in general be borne in mind in making appointments; and

(ii)

there shall be a general reservation of 10 per cent of the vacancies for members of the scheduled castes in making appointments to the service :

Provided that if in any one year candidates of the scheduled castes fail to be recruited to service to the extent of 10 per cent the deficiency shall be made good in the recruitment to the service in the following year :

Provided further that the reservation on account of the deficiency shall not be carried forward for more than one year.

14.

Canvassing.

- No recommendation either written or oral than that required under the rules will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature by other means shall disqualify him for appointment.

15.

Character.

- The character of a candidate for direct appointment must be such as to render him suitable in all respects for employment in the service or post to which he is to be appointed. It would be the duty of the appointing authority to satisfy itself on this point.

Note. - (a) A conviction need not of itself involve the refusal of a certificate of good character. The circumstances of the conviction should be taken into account and if they involve no moral turpitude or association with crimes of violence or with a movement which has as its object the overthrow by violent means of Government as by law established in Union of India the mere conviction need not be regarded as a disqualification.

(b)

While no person should be considered unfit for appointment solely because of his political opinions, care should be taken not to employ persons who are likely to be disloyal and to abuse the confidence placed in them by virtue of their appointment. Ordinarily, persons who are actively engaged in subversive activities including members of any organization the avowed object of which is to change the existing order of society by violent means, should be considered unfit for appointment under Government. Participation in such activities at any time after attaining the age of 21 years and within three years of the date of enquiry, should be considered as evidence that the person is still actively engaged in such activities, unless in the interval there is positive evidence of a change of attitude.

(c)

Persons dismissed by the Government of India or by State Government will also be deemed to be unfit for appointment to the service.

A candidate must produce certificate of good character from the principal, academic officer of the university or college/headmaster of the school in which he was last educated and from two responsible persons of status (not relative) who were well acquainted with him in private life and are unconnected with this university, college or school.

16.

Physical Fitness.

- No person shall be appointed as a member of the service unless he possesses a sound health and is mentally fit and is free from any physical defect likely to interfere with the efficient discharge of his duties as a member of the service. Before a candidate is selected for admission to the college under Rule 5 (a) (2) or is appointed to the service under Rule 5 (b) (2) or 5 (c) (2), he must produce a medical certificate of health according to the rules and in the form prescribed by Government.

17.

Probation.

(1)

All appointments to the service in or against substantive vacancies shall be made on probation. The period of probation in each case shall be one year :

Provided that the appointing authority may extend the period of probation in special cases up to a specified date.

(2)

If during or at the end of the period of probation it is found that a probationer has not made sufficient use of his opportunities or has failed to satisfy the standard of work or intelligence or aptitude expected of him, he shall be reverted to his substantive post, if he has one, or his services will be dispensed with if he has not substantive post and he will be informed accordingly on month before reversion or discharge, as the case may be.

(3)

A probationer whose services are dispensed with during or at the end of period of probation or extended period of probation, shall not be entitled to any compensation.

18.

Confirmation.

- A probationer shall be confirmed in his appointment when-

(a)

he has completed the prescribed period of probation; and

(b)

the appointing authority is satisfied that he is fit for confirmation.

19.

Pay.

- The scales of [pay]

[Scale of pay will be applicable subject to revised scale of pay issued from time to time by the Government.]

admissible to persons appointed to a post in the cadre of the service, whether in a substantive or in an officiating capacity or as a temporary measure shall be as follows :

(i)

Forest Rangers - Rs. 120-8-200-E.B.-10-300.

(ii)

Deputy Rangers - Rs. 75-5-120.

(iii)

Foresters - Rs. 60-3-90-4-110.

20.

Pay during probation.

(1)

A person on probation, if he is not already in the service of the State, shall draw during the period of probation the minimum of the scales of pay admissible to him under Rule 19, provided that a Deputy Ranger recruited under Rule 5 (b) (2) shall draw pay at the rate of Rs. 85 per mensem in the time-scale, during the first year and increments as they accrue, but if the period of probation is extended for failure to give satisfaction the extended period shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during the period of probation of a member already in Government service will be regulated by the relevant rules referred to in Rule 21.

21.

Leave, allowances, pensions and other conditions of service.

- Except as provided in these rules, the pay, allowances, leave, pensions and other conditions of service shall be regulated by the rules framed under the proviso to Article 309 of the Constitution of India and pending the issue of such rules, by the rules made applicable by Government Notification No. A-5822/X-303, dated November 14, 1930, and No. G-698/X-534 (44), dated July 16, 1937, continued in force under Article 313 of the Constitution.

Appendix A

[See Rule 5 (a) (2)]

Procedure for selection of candidates for admission to the Ranger's Course at the Indian Forest Ranger College, Dehra Dun

1. The Government will report to the Commission the number of candidates to be recruited under Rule 5 (a) (2).

2. The Commission will announce the number of candidates to be recruited in the official Uttar Pradesh Gazette and the leading newspapers of Uttar Pradesh and invite applications from the intending candidates to be recruited under Rule 5 (a) (2).

3. The application must be submitted direct to the Secretary to the Commission in the prescribed form (which will be supplied by him on requisition after the announcement referred to in the preceding rule and on payment of a fee of Re. 1 which will not be refunded) and must be accompanied by the documents mentioned therein including a treasury receipt of Rs. 4.

4. As required by Rule 6 a candidate for admission to the college must be bona fide resident of Uttar Pradesh. He must have attained the age of 19 years and must not have attained the age of 21 years on August 31 of the year in which the selection is made. He must also have passed the Intermediate Examination (or an examination of equivalent or higher standard) with one or more of the subjects mentioned in Rule 8.

5. The Commission will hold a competitive examination for the selection of a candidate and will duly notify the date, time

and place of the examination. A candidate, who would have been entitled in respect of his age to appear at such an examination in any year in which no such examination is held, shall be deemed to be entitled in respect of his age to appear at the next following examination.

6. Candidates selected for admission to the examination will be required to pay a fee of Rs. 25 immediately after the receipt of the certificate of admission :

Provided that for a candidate of the scheduled castes the examination fee shall be Rs. 15 only.

Note. - Only treasury receipt for the fee will be accepted by the Commission and no claim for a refund of the fee will be entertained.

7. The subjects for examination with the examination marks allotted for each shall be as follows :

Section A-Compulsory

Full marks

(1)

English Essay

...

...

100

(2)

General Knowledge

...

...

100

(3)

Elementary Mathematics

...

...

100

(4)

Hindi

...

...

100

Section B-Optional

(5)

Any one of the following subjects

...

...

100

(a) Physics

(b) Chemistry.

(c) Zoology.

(d) Botany

(e) Indian History.

(f) Economics.

Section C

(6)

Viva Voce

...

...

250

Total

750

Note. - The viva voce test will be held by the Commission after the written examination on dates to be communicated later and will be confined to such number of candidates only as have obtained a specified percentage of marks having regard to the general standard of marks obtained by them.

N.B. - (i) From the marks of candidates in each subject, the Commission may make such deductions as they consider necessary in order to secure that no credit is allowed for merely superficial knowledge.

(ii)

If a candidate's handwriting is not easily legible, a deduction may be made on this account from the total marks otherwise secured by him.

8. The syllabus for the examination shall be as follows :

(1)

English Essay. - An essay to be written in English on one of several specified subjects.

(2)

General Knowledge. - Questions relating to current events and problems of every day life and present personalities with a liberal choice of questions on contemporary subjects mainly, if not exclusively connected with India, will be set. The object of the paper is to test the range of interest and the power of observation of the candidate.

(3)

Elementary Mathematics. - Ordinary questions of average efficiency in Arithmetic, Algebra and Geometry, such as set for the High School or equivalent examinations of this State, will be set.

(4)

Hindi. - Questions will be of such a type e.g., writing an article or a letter, explanation of passages, meaning of words and expressions and translation from and into English as well test whether a candidate has working knowledge of this language.

(5)

Optional Subjects.-No syllabus is prescribed but question will be such as are set at the Intermediate Examination of this State.

(6)

Viva Voce.-The test will be in matters of general interest. In awarding marks consideration will be paid to the personality, address, physique, character and general suitability of the candidate.

Note. - The standard of the examination for Elementary Mathematics and Hindi will be that of the High School, and for the optional subjects and English Essay and General Knowledge that of the Intermediate Examination.

9. The Commission will draw up a list of the candidates obtaining the highest aggregate of marks and forward it to Government and candidates shall be selected for admission to the college in that order subject to the provisions of Rule 16 of the rules and paragraph 11 of this Appendix.

10. No candidate shall be allowed to appear more than twice for the examination.

11. (a) Selected candidates will be attached to a Divisional Forest Officer, for at least three months, usually between 1st December and 15th March. During this period the Divisional Forest Officer concerned will supervise the candidate's work and on its conclusion will report to the Conservator on the candidates' aptitude for forest duty.

(b)

Those candidates who obtain satisfactory reports on the conclusion of their practical training under a Divisional Forest Officer will be ordered to join the college on or about the 1st of April following. Others will be liable to be rejected.

12. During the three months' practical training each candidate will receive travelling allowance at the rates prescribed in Appendix VII to the Financial Handbook, Volume III.

13. While undergoing the course of training at the college, the selected candidates will receive their tuition fee and will be granted stipends to enable them to meet part of the cost of living at the college. They will also receive a non-recoverable equipment allowance of Rs. 400 each in addition to the actual expenses incurred on journeys during the course of training as passed by the President of the college.

14. Before joining the college each candidate will be required to sign an agreement in the prescribed form for binding himself to serve the Government for five years after obtaining the rangership certificate.

Note. - Any agreement bond or security bond required to be executed by or on behalf of the holder of a scholarship or stipend awarded by Government is exempt from payment of stamp duty in Uttar Pradesh.

15. On obtaining a higher standard certificate at the end of the two years' course at the college, the student will be

appointed as a forest ranger on the lowest pay in the time scale of pay of forest ranger, with effect from the day following the date of his rangership certificate. The period intervening between the date of certificate and the date of taking over charge will be treated as duty provided that it does not exceed 10 days.

Appendix B

General rules regarding nationality, domicile and residence of candidates for recruitment to services and posts under the rule-making control of the Governor, Uttar Pradesh

[Vide Rule 6]

A candidate must be-

(a)

a citizen of India whose original domicile is in Uttar Pradesh, provided he has not acquired a domicile elsewhere; or

(b)

a citizen of India whose original domicile is in Uttar Pradesh, but who has acquired a domicile in Uttar Pradesh, and has resided there for not less than five years at the date on which he applies for recruitment to the service or post; or

(c)

(i)

a citizen of India, and

(ii)

a person who has migrated or may hereafter migrate from Pakistan to reside permanently in this State, in whose favour a declaration of eligibility has, except as hereinafter provided, been issued by the Governor.

Exceptions. - Notwithstanding anything contained in this rule, the following shall be eligible for recruitment-

(1)

a citizen of India whose father is (or, if dead, was at the time of his death) employed in any department of the Union Government and (or was) liable to inter-State transfers provided that he has himself resided in Uttar Pradesh for three continuous years immediately preceding the date of application for appointment; or

(2)

a person who migrated to the territory of Uttar Pradesh from the territory now included in Pakistan if he or either of his parents or any of his grandparents, was born in India as defined in the Government of India Act, 1935 (as originally enacted); and in the case where such person so migrated before July 19, 1948, he has been ordinarily residing in the territory of Uttar Pradesh since the date of his migration; or

(3)

in the case where such person so migrated on or after July 19, 1948, he was registered as a citizen of India before January 26, 1950 as required under sub-clause (11) of Clause (b) of Article 6 of the Constitution; or

(4)

a person who after having migrated to the territory now included in Pakistan, returned to Uttar Pradesh under a permit for resettlement or permanent return issued by or under the authority of any law and every such person shall for the purposes of Clause (b) of Article 6 of the Constitution be deemed to have migrated to the territory of Uttar Pradesh after July 19, 1948.

Note. - (1) A declaration of eligibility as required by Clause (c) above will be given by the Governor after considering each case on merit :

Provided that no declaration of eligibility will be required in the case of persons who migrated from Pakistan to reside permanently in this State on or after July 19, 1948 but before September 30, 1948 if such persons have already entered service on the strength of instructions issued in Appointment (B) Department Memo No. O-2213/II-B-282-41, dated October 22, 1948.

(2)

The appointment of persons who are not covered by the provisions in Clauses (a) to (c) will be made only in every exceptional circumstances and only on a temporary or contract basis, the specific orders of the Governor being obtained in each case.

(3)

The original domicile prevails until a new domicile has been acquired, and a new domicile continues until the former domicile has been resumed or another has been acquired. But a person can have only one domicile at one time for the purpose of this rule.

(4)

A person acquires a new domicile by taking up his fixed habitation in a State which is not that of his original domicile. Such a person may make a declaration of his having acquired a new domicile before the District Magistrate of the district in which he takes up his fixed habitation but such declaration shall not by itself be regarded as sufficient proof of change of domicile.

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